

Before LOKEN, ERICKSON, and KOBES, Circuit Judges.

---

KOBES, Circuit Judge.

The Minnesota Chapter of Associated Builders and Contractors and two other associations (MNABC) sued Attorney General Keith Ellison, Department of Labor and Industry Commissioner Nicole Blissenbach, and Governor Timothy Walz seeking to enjoin the defendants from enforcing the “Employer-Sponsored Meetings or Communication Act.” The district court denied the defendants’ motion to dismiss for lack of subject matter jurisdiction based on state sovereign immunity. We reverse.

The Act is an anti-captive audience law which prohibits employers from “tak[ing] any adverse employment action against an employee” for “declin[ing]” to attend meetings or receive communications where an employer disseminates its opinion “about religious or political matters.” Minn. Stat. § 181.531, subd. 1(1). It provides a private right of action for “aggrieved employee[s],” *id.* at subd. 2, and requires employers to post a “notice of employee rights” under the Act “within the workplace,” *id.* at subd. 3(b). It was amended to require the Commissioner to “develop an educational poster providing notice of employees’ rights provided.” *Id.* at subd. 3(a).

Immediately after MNABC filed this lawsuit, the Attorney General and the Commissioner filed materially identical declarations stating each had “not enforced” or “threatened to enforce” the Act and had “no present intention to commence” enforcement proceedings. After it was amended, the Commissioner reaffirmed her previous declaration disavowing any intentions, past or present, to enforce the Act.

The Governor was not an original defendant, but after enactment, he told the audience at a trade union conference that “Minnesota was going to ban that practice, of having those captive anti-union meetings. You go to jail now if you do that in